

The complaint

Mr and Mrs L complain about Ageas Insurance Limited (“Ageas”) over its decision to decline their claim for damage to a flat roof, following high winds in early 2020. They want Ageas to pay for a replacement roof and to pay compensation for their distress and inconvenience.

What happened

Towards the end of March 2020, after a period of high winds and bad weather, Mr and Mrs L became aware of patches of cold in their home. When they went outside, saw that the felt covering to a flat roof to the rear of their home had been blown loose and had doubled over on itself.

Mr and Mrs L commissioned a temporary repair from a local contractor who unfolded the roof felt and secured it with strips of wood.

Mr and Mrs L submitted a claim to their insurer, Ageas.

Ageas initially responded to Mr and Mrs L that they had checked the local weather records and that no storm had been recorded in the period prior to the claim. It stated that winds needed to be 55 mph to qualify as a storm. Ageas then agreed to send a surveyor to inspect the roof and damage.

The surveyor attended and carried out an inspection using a pole camera. The surveyor did not climb up onto the roof, or inspect from a ladder, but concluded that the roof felt showed signs of debonding from the top roof tiles around the side and rear of the roof. The surveyor also commented that the felt was coming to the end of its lifespan and no lead flashing was present. He therefore considered that the damage sustained was primarily due to wear and tear, and that the roof needed to be replaced.

The surveyor carried out an inspection, using the pole camera, to the conservatory roof and did not observe any damage to that roof.

Based on the surveyor’s findings, Ageas declined the claim. In their final response, Ageas noted that there was insufficient evidence of storm conditions at the relevant time, and that the cause of the damage was wear and tear.

Mr and Mrs L were not happy with this response and contacted us.

Around July 2020, Mr and Mrs L discovered damage to their conservatory roof, which was consistent with impact from falling roof tiles. This was subsequently reported to Ageas.

One of our investigators looked into this complaint and set out his view to the parties. In this case, the investigator considered that there was insufficient evidence of storm conditions, and, also, that the principal cause of the damage had been shown to be wear and tear. Mr and Mrs L did not accept this view and asked for an ombudsman decision. They commissioned a report from their roofing contractors on the condition of the roof. This stated that the roof was in overall good condition and the contractor was of the opinion that the type

of damage strongly indicated storm damage.

I have subsequently issued a provisional decision to the parties. In that provisional decision I explained why I thought that Ageas' decision to decline the claim for the flat roof was not unreasonable, but that I thought that Ageas should consider the conservatory damage, and any consequential damage, under the same claim as the flat roof claim, since it is likely that the conservatory roof damage occurred at the same time as the damage to the flat roof.

Both parties have been invited to submit comments in response to my provisional decision.

Ageas has responded indicating that it accepts my provisional decision. Mr and Mrs L have responded setting out that they do not accept my decision.

Mr and Mrs L made a number of points in their submissions, which I summarise in broad terms below.

Mr and Mrs L feel that Ageas' decision to decline the flat roof claim is unreasonable because:

- storm damage is not defined in their policy and there is no mention of what wind speeds would qualify;
- Ageas' systems stated that the weather was showing as a storm;
- Ageas used wind speeds from a weather station around 15 miles away from Mr and Mrs L's home and they believe that different speeds would have been recorded at their property;
- they feel that Ageas' agent's inspection of their property was inadequate as it was less thorough than their appointed professionals' inspection and because the conservatory roof damage was not detected;
- they do not believe that there was evidence that the felt became de-bonded from the tiles, and they make the point that lead flashing is not required; and
- they think that Ageas should pay for a replacement roof covering (as the unfolded felt sustained damage), scaffolding and the immediate repair that was carried out.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

I understand Mr and Mrs L's disappointment at my provisional decision and that I did not consider that Ageas' decision to decline their claim for the flat roof was unfair. I appreciate that they have been left with a considerable cost burden of replacing the roof and they feel that this should be covered by insurance.

Mr and Mrs L have made the point that they have been advised by several contractors that the damage sustained is, in those contractors' view, storm damage and they therefore think that the decision to decline is unreasonable.

In my provisional decision, I reiterated our approach to considering claims of storm damage.

This requires that the damage be of a type caused by a storm, but also that there be

evidence of a storm occurring, and also that the storm was the main reason for the damage.

I should also make clear that I am not able to determine the cause of the damage, but my role is to consider whether the approach taken by Ageas was reasonable.

I do not dispute that the damage that occurred to the flat roof is consistent with storm damage. The reason I provisionally did not uphold the complaint related to the other two questions.

Firstly, Mr and Mrs L dispute the definition used by Ageas for a storm, because it is not defined in the policy with an explanation of what wind speeds would be required.

Not every word of a policy will be defined, and where it is not, the word is given its ordinary meaning. The Beaufort scale is a widely used tool for determining weather conditions and I do not think it unreasonable for Ageas to use this scale when determining whether an insured event of a storm took place.

On the evidence available to me, the conditions recorded did not meet the threshold for a storm.

Mr and Mrs L have commented that Ageas initially described the conditions as a storm and then changed their view. Whether the word storm was used by staff of Ageas does not affect the ultimate conclusion that the evidence did not show a storm, using this criteria.

Consequently, on the first question I cannot say that the insured peril of a storm took place.

Mr and Mrs L have made the point that the recorded wind speeds were taken 15 miles from their home. I appreciate that there may be a difference between the weather station and their home but without any other evidence of different speeds at Mr and Mrs L's home, or at a point closer to it, I cannot say that the recorded speeds were incorrect or substantially different to the conditions at Mr and Mrs L's home.

On the third question, of whether a storm was the main reason for the damage, Ageas relied upon the report of its contractor which concluded that the main reason for the damage was age related decay. I have considered this report and think that it gives reasons for the conclusion and supports these.

I do not think it unreasonable for Ageas to rely on this report and consequently I do not consider that I could conclude that storm was the main reason for the damage.

Mr and Mrs L have made a number of comments about the adequacy of the inspection carried out by Ageas' contractor, chiefly because the conservatory roof damage was not noticed, that the contractor did not undertake appropriate covid-19 safety measures, and because the inspection was carried out without the contractor going onto the roof.

I am unable to comment on the manner of the inspection and whether social distancing was observed, but as regards the manner of inspection, I am satisfied that a pole camera inspection could be sufficient for an inspection and that this is routinely done. I accept that the conservatory damage was not noticed, but this was also the case with Mr and Mrs L's own contractors and so I consider that it was not unreasonable to miss this. Now that it has been detected I would, of course, expect Ageas to take this part of Mr and Mrs L's claim further.

Mr and Mrs L also feel that I have preferred Ageas' report to the report they have produced. I accept that there is disagreement between the two reports over the condition of the roof and

whether the felt had de-bonded from the flat roof over time, but I have not preferred one report over another. I have considered whether it was reasonable for Ageas to rely on their report and to decline the claim and I consider that their decision to do so was reasonable.

I appreciate that Mr and Mrs L will be disappointed with my view but I have not seen evidence which changes my decision from the provisional decision. Accordingly, I adopt that decision, as supplemented by this decision, as my final decision.

That is, that I do not uphold Mr and Mrs L's complaint regarding Ageas' decision to decline their flat roof claim, but I consider that Ageas should progress Mr and Mrs L's claim for their conservatory roof, and any other damage which they contend occurred at the same time, as part of the same claim.

My final decision

For the reasons set out above, my final decision is not to uphold Mr and Mrs L's complaint regarding the decision to decline their flat roof claim.

I do, however, consider that Ageas Insurance Limited should seek confirmation from Mr and Mrs L of all damage which they consider resulted from the high winds of 28 March 2020, and now consider this under the same claim, applying the accidental damage cover as appropriate.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs L and Mr L to accept or reject my decision before 19 February 2021.

Laura Garvin-Smith
Ombudsman